

(*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1118.)

Both the “public forum” and “public interest” requirements are broadly construed. (*Hecimovich v. Encinal School Parent Teacher Organization* (2012) 203 Cal.App.4th 450, 464 [public interest]; *Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 476 [public forum].)

“For purposes of the third category in subdivision (e) of section 425.16, a “public forum” is traditionally defined as a place that is open to the public where information is freely exchanged.’ [Citation.]” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 539, citing *Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 475.) Web sites accessible to the public, such as Internet “newsgroups,” are “public forums” for purposes of the anti-SLAPP statute. (*Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 42, fn. 4; accord, *Muddy Waters, LLC v. Superior Court* (2021) 62 Cal.App.5th 905, 917-918.)

A public issue may be implicated when the content of the speech implicates the qualifications, competence and professional ethics of a professional. (*Yang v. Tenet Healthcare Inc.* (2020) 48 Cal.App.5th 939, 947; see *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 343-344 [newspaper article about doctor was issue of public interest where information would assist others in choosing doctors].)

Defendant identifies two separate protected activities. However, neither support a finding that Defendant’s actions or conduct constitutes a protected activity under section 425.16, subdivisions (e)(3) or (e)(4) of the Code of Civil Procedure, which Defendant cites to in her Anti-SLAPP Motion.

First, Defendant refers to Department C23 of this Court’s denial of Plaintiff’s motion for summary judgment in a related lawsuit between Plaintiffs and Defendant Le. However, it is unclear to the Court how this purported protected activity pertains to Defendant, as she was neither the moving party nor the opposing party to that motion for summary judgment. (See Exhibit 3 to Request for Judicial Notice.)

In fact, it is not even clear to that Defendant was a party to that related matter. It is also not clear that the allegations in the related matter, including the allegedly defamatory statements at issue in that case, are the same as the one raised in Plaintiffs’ present lawsuit.

Further, while Defendant Ngo contends Department C23 of this Court “determined that the underlying conflict of [Plaintiff] and [Defendant Le] ... amount to a public controversy and was protected speech,” Defendant Ngo has merely asked the Court to take judicial notice of Department C23’s September 16, 2024 Minute Order.

While the Court may take judicial notice of the existence of Department C23’s Minute Order, as well as the truth of the results reached, namely, that Department C23 granted the motion for summary judgment in part, and denied it in part, it may not take judicial notice of the truth of hearsay statements in the minute order. (*Lockley v. Law Office of*

*Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

"[J]udicial notice could not properly be taken of the truth of the factual findings of the trial judge in" a prior case. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1563.) "To state this a bit more simply, the taking of judicial notice that the judge believed A (i.e. that the judge ruled in favor of A on a particular factual dispute) is different from the taking of judicial notice that A's testimony must necessarily have been true simply because the judge believed A and not B." (*Sosinsky, supra*, 6 Cal.App.4th at p. 1565.)

The second protected activity Defendant identifies is her republication and redistribution of Defendant Le's articles that allegedly defamed Plaintiffs by referring to Plaintiff Nguyen as a criminal defendant, rather than a defendant in a civil lawsuit.

However, Defendant has presented no evidence establishing that the statements concerning Plaintiffs concern an issue of public interest.

For example, Defendant's Motion does not provide any evidence, or even make an argument, that the subject statements concerned a person or entity in the public eye, that the republication of Defendant Le's article could directly affect a large number of people beyond the direct participants, or that the topic of Defendant Le's article concerned a topic of widespread and/or public interest. (*Kieu Hoang v. Phong Minh Tran* (2021) 60 Cal.App.5th 513, 527.) Further, and contrary to the arguments made in the Reply, Paragraphs 6 and 7 of the Ngo Declaration do not support a finding that Plaintiffs are limited purpose public figures.

Similarly, Defendant's Motion provides no evidence, and makes no argument, that her republication of Defendant Le's article implicated the qualifications, competence and professional ethics of a professional. (*Yang v. Tenet Healthcare Inc.* (2020) 48 Cal.App.5th 939, 947.)

Instead, based on the allegations of the Complaint, the arguments raised in the Anti-SLAPP Motion, and the evidence presented in the Anti-SLAPP Motion, the Court finds Defendant Le's article, which Defendant republished, involves a private dispute, rather than one that implicates the public interest.

The allegations of the Complaint, and the evidence presented in Defendant's Motion, are reminiscent of the facts in *Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624. In *Woodhill*, the defendant, who had over a million social media followers, was unhappy with a birthday cake the plaintiff had made for defendant's son, as the chemistry-themed cake included pills that looked too realistic for defendant's liking. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 626-628.) As retribution for what he perceived as plaintiff's refusal to apologize and take responsibility for its error, the defendant posted disparaging statements about plaintiff on his social media account, and he described the incident on his podcast, which resulted in the plaintiff receiving threats from defendant's followers. (*Id.* at pp. 628-629.)